

Court No. - 40

Case :- WRIT - C No. - 24606 of 2010

Petitioner :- Shabbir

Respondent :- State Of U.P. Thru. Secr. Finance & Revenue & Ors.

Petitioner Counsel :- M.P. Tiwari

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble S.C. Agarwal, J.

On prayer made by Sri Rajesh Tripathi, learned counsel for the respondent no.4, the case is directed to be put up as fresh on 11.5.2010 so as to enable him to obtain instructions in the matter.

Order Date :- 5.5.2010

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Court No. - 40

Case :- WRIT - C No. - 24606 of 2010

Petitioner :- Shabbir

Respondent :- State Of U.P. Thru. Secr. Finance & Revenue & Ors.

Petitioner Counsel :- M.P. Tiwari

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble S.C. Agarwal, J.

As prayed by Shri Rajesh Tripathi, learned counsel for the respondent no.4, the case is directed to be put-up as fresh on 18th May, 2010 so as to enable him to do the needful, as mentioned in the Order dated 5.5.2010.

Order Date :- 11.5.2010

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Court No. - 40

Case :- WRIT - C No. - 24606 of 2010

Petitioner :- Shabbir

Respondent :- State Of U.P. Thru. Secr. Finance & Revenue & Ors.

Petitioner Counsel :- M.P. Tiwari

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Subhash Chandra Nigam, J.

On prayer made by Sri Rajesh Tripathi, learned counsel for the respondent no.4, the case is directed to be put-up as fresh on 20.5.2010 so as to enable him to do the needful, as mentioned in the order dated 5.5.2010.

Order Date :- 18.5.2010

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Court No. - 40

Case :- WRIT - C No. - 24606 of 2010

Petitioner :- Shabbir

Respondent :- State Of U.P. Thru. Secr. Finance & Revenue & Ors.

Petitioner Counsel :- M.P. Tiwari

Respondent Counsel :- C.S.C., Rajesh Tripathi

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Subhash Chandra Nigam, J.

By the order dated 5th May, 2010 and thereafter, by the orders dated 11th May, 2010 and 18th May, 2010, Sri Rajesh Tripathi, learned counsel for the respondent No. 4 was given time to obtain instructions in the matter.

Sri. Rajesh Tripathi, learned counsel for the respondent No. 4 states that despite communication having been sent to the respondent No. 4, no instructions have been received from the respondent No. 4.

Issue notice pending admission.

Notice on behalf of the respondent Nos. 1, 2 and 3 has been accepted by the learned Standing Counsel. Notice on behalf of the respondent No. 4 has been accepted by Sri Rajesh Tripathi, Advocate.

Sri. Rajesh Tripathi, learned counsel for the respondent No. 4 prays for and is granted six weeks' time to file counter affidavit. Rejoinder affidavit may be filed by the next date fixed in the matter.

Heard on the question of grant of interim relief.

Sri. M.P. Tiwari, learned counsel for the petitioner submits that no Provisional Assessment as contemplated in Section 126 of the Electricity Act, 2003 as well as in Paragraph 6.8 (b)(i) of the U.P. Electricity Supply Code, 2005 was ever served on the petitioner, and the petitioner was not given any opportunity to file objections as required under the said provisions. It is submitted that without following the procedure as laid down in the said provisions, the Recovery Proceedings have been initiated against the petitioner.

The matter requires consideration.

Having regard to the facts and circumstances of the case and having considered the submissions made by Sri M.P. Tiwari, learned counsel for the petitioner and Sri. Rajesh Tripathi, learned counsel for the respondent No. 4, it is provided that till the next date of listing, the Recovery pursuant to the Citation dated 12.1.2010 will remain stayed provided the petitioner deposits an amount of Rs. 90,000/- (Rupees Ninety Thousand) with the respondent No. 4 within four weeks from today.

In the event of default on the part of the petitioner in making the deposit as directed above, this interim order will stand automatically vacated.

List on 29th November, 2010.

The case stands released from assignment. It will now be listed before appropriate Bench.

Order Date :- 20.5.2010

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Court No. - 21

Case :- WRIT - C No. - 24606 of 2010

Petitioner :- Shabbir

Respondent :- State Of U.P. Thru. Secr. Finance And Revenue And Ors.

Counsel for Petitioner :- M.P. Tiwari

Counsel for Respondent :- C.S.C., Rajesh Tripathi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

Case called out in the revised list.

None appears on behalf of the petitioner to press this petition.

The petition is dismissed for want of prosecution

Order Date :- 17.2.2023

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(Syed Qamar Hasan Rizvi,J.) (Manoj Kumar Gupta,J.)